



U.S. Customs and Border Protection

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PUBLIC VERSION

EAPA Cons. Case 7838

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Re: Notice of Determination as to Evasion

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) investigation 7838, U.S. Customs and Border Protection (CBP) has determined that there is substantial evidence that Musa Stone Import (Musa Stone) and KMGK, LLC dba KMG Marble & Granite (KMGK) entered merchandise covered by antidumping (AD) and countervailing (CVD) duty orders A-570-084 and C-570-085 (covered merchandise)² into the customs territory of the United States through evasion.³ Substantial evidence demonstrates that Musa Stone and KMGK imported

¹ Fox Rothschild LLP also represented Musa Stone Import, Inc. (Musa Stone) from April 15, 2024 to June 18, 2024. *See* Letter from Musa Stone, “Entry of Notice of Appearance,” dated April 15, 2024; *see also* Letter from Musa Stone, “Quartz Surface Products from China Shipped through Vietnam, the Philippines, and India: Withdrawal of Notice of Appearance,” dated June 18, 2024.

² *See* 19 C.F.R. § 165.1.

³ *See Certain Quartz Surface Products from the People’s Republic of China: Antidumping and Countervailing Duty Orders*, 84 FR 33053 (July 11, 2019) (*AD/CVD Orders*).

quartz surface products (QSP) from the People’s Republic of China (China) into the United States by transshipment through Thailand and the Philippines, respectively. Musa Stone and KMGK did not declare that the merchandise was subject to the *AD/CVD Orders* on entry and, as a result, no cash deposits were collected on the merchandise. Substantial evidence does not indicate that M. US A. Inc. dba Kings Marble and Granite (Kings) entered merchandise through evasion.

Background

On August 10, 2023, October 25, 2023, and November 3, 2023, Cambria Company LLC (the Allegor), a domestic producer of QSP, submitted allegations to CBP that Kings, Musa Stone, and KMGK (collectively, the Importers) were evading the *AD/CVD Orders* on QSP from China.⁴ The Allegations asserted that the Importers were importing Chinese-origin QSP from the Chinese exporter Zhangzhou Betop Import & Export Trade Co., Ltd (Betop Stone) into the United States that was transshipped.⁵ On November 9, 2023, CBP acknowledged receipt of the Allegations.⁶

CBP found the information in the Allegations reasonably suggested that the Importers entered covered merchandise into the customs territory of the United States through evasion.⁷ Consequently, on December 4, 2023, CBP initiated an EAPA investigation pursuant to Title IV, section 421 of the Trade Facilitation and Trade Enforcement Act of 2015.⁸ After the initiation of this investigation, CBP issued CBP Form 28 (CF-28) questionnaires to Kings, Musa Stone, and KMGK concerning certain entries of QSP and requested the corresponding entry and production documentation.⁹ Kings submitted a CF-28 response on its entry from Hung Thinh Produce and

⁴ See Letter from the Allegor, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of M. US A. Inc. d/b/a Kings Marble and Granite,” dated August 10, 2023; see also Letter from the Allegor, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Musa Stone Import, Inc.,” dated October 25, 2023 (Musa Stone Allegation); see also Letter from the Allegor, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of KMGK, LLC,” dated November 3, 2023 (KMGK Allegation). The Allegor also submitted an updated version of the Kings Allegation on October 25, 2023. See Letter from the Allegor, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of M. US A. Inc. d/b/a Kings Marble and Granite,” dated October 25, 2023 (Kings Allegation) (collectively, the Allegations). The Allegor, Cambria Company LLC, is a domestic producer of QSP and, thus, meets the definition of an interested party that is permitted to submit an EAPA allegation pursuant to 19 U.S.C. § 1517(a)(6)(A)(ii), 19 C.F.R. § 165.1(2), and 19 C.F.R. § 165.11(a). See Musa Stone Allegation at 4 and Exhibit 2.
⁵ *Id.* at 1, 5-9 and Exhibits 3, 9-11.

⁶ See 19 C.F.R. § 165.12; see also Email from CBP, “EAPA 7838 - Official Receipt of Properly Filed Allegation,” dated November 9, 2023 (Kings Official Receipt); see also Email from CBP, “EAPA 7855 - Official Receipt of Properly Filed Allegation,” dated November 9, 2023 (Musa Stone Official Receipt); see also Email from CBP, “EAPA 7886 - Official Receipt of Properly Filed Allegation,” dated November 9, 2023 (KMGK Official Receipt).

⁷ See 19 U.S.C. § 1517(b)(1); see also 19 C.F.R. § 165.15.

⁸ See 19 U.S.C. § 1517(b)(5); see also 19 C.F.R. § 165.13; see also CBP Memorandum, “Initiation of Investigation for EAPA 7838, 7855, and 7886 (Consolidated Case 7838),” dated December 4, 2023.

⁹ On December 13, 2023, CBP issued CF-28s to Musa Stone on entry [#]2508 from Siam Stone Product Company Limited (Siam Stone) and on entry [#]8993 from Phu Tan Co., Ltd (Phu Tan). On December 13, 2023, CBP issued CF-28s to KMGK on entries [#]0689, [#]2540, and [#]7217 from Phu Son JSC (Phu Son) and on entry [#]2143 from Badan Building Materials Corporation (Badan). On December 13, 2023, CBP issued a CF-28 to Kings concerning entry [#]5274 from Hung Thinh Produce and

Import (Hung Thinh).¹⁰ Musa Stone submitted a CF-28 response on an entry from Phu Tan Co., Ltd (Phu Tan) but did not submit a response to CBP's CF-28 concerning its entry from Siam Stone Product Company Limited (Siam Stone).¹¹ KMGK submitted CF-28 responses concerning its entries from Phu Son JSC (Phu Son) and Badan Building Materials Corporation (Badan).¹² After receiving these CF-28 responses, CBP added a memorandum to the administrative record containing information on Musa Stone's imports from Phu Tan, a list of entries from Badan, several CF-28-related emails, and several business reports on Kings, Musa Stone, and KMGK.¹³

After evaluating the information on the record, CBP determined that reasonable suspicion existed that the Importers imported Chinese-origin QSP into the United States that had been transshipped via Siam Stone and/or Badan.¹⁴ This information included the facts that KMGK's point of contact at Badan resided in China rather than the Philippines and worked for its Chinese supplier and potential parent company, New Zhong Yuan Ceramics Import and Export Co., Ltd. of Guangdong (New Zhong Yuan Ceramics); the CF-28's sales documents also indicated that Badan was affiliated to a similarly-named supplier in China called Ba Dan Construction Materials Limited (Ba Dan).¹⁵ Regarding Musa Stone, it did not provide any of the requested documents concerning its entry from Siam Stone.¹⁶ As such, Musa Stone did not substantiate that Siam Stone produced the entry's QSP, did not substantiate that the QSP was produced in Thailand, and did not cooperate with CBP's CF-28 request for information.¹⁷

Consequently, on March 11, 2024, CBP issued a notice of initiation of investigation and interim measures (NOI) to the Importers and the Alleger.¹⁸ This notice informed the Importers and the Alleger of the initiation of the investigation and of CBP's decision to impose interim measures

Import (Hung Thinh). This entry was not declared to be QSP; however, CBP issued a CF-28 on it in case it was misclassified. On January 29, 2024, KMGK submitted its response concerning the three entries from Phu Son and on January 31, 2024, KMGK submitted its response concerning the entry from Badan. On January 31, 2024, Kings submitted its response on its entry from Hung Thinh. On February 13, 2024, Musa Stone submitted its response on its entry from Phu Tan. Musa Stone did not submit a response on its entry from Siam Stone. After CBP announced the EAPA investigation to the Importers, it asked them to bracket their CF-28 responses. As such, on June 11, 2024 and June 19, 2024, Kings, Musa Stone, and KMGK submitted bracketed versions of their respective CF-28 responses. *See* Letter from Kings, "Quartz Surface Products from China Shipped through Vietnam, the Philippines, and Thailand: CF-28 Rebracketing," dated June 11, 2024 (Kings CF-28 Response); *see also* Letter from Musa Stone, "Quartz Surface Products from China Shipped through Vietnam, the Philippines, and Thailand: CF-28 Rebracketing," dated June 11, 2024 (Musa Stone CF-28 Response); *see also* Letter from KMGK "EAPA Cons. Case 7838 – CF-28 Bracketing Request Via CBP Email On May 21, 2024," dated June 11, 2024 (KMGK CF-28 Response – Badan Entry); *see also* Letter from KMGK, "EAPA Cons. Case 7838 – CF-28 Bracketing Request Via CBP Email On June 12, 2024," dated June 19, 2024 (KMGK CF-28 Response – Phu Son Entries).

¹⁰ *See* Kings CF-28 Response.

¹¹ *See* Musa Stone CF-28 Response; *see also* Letter from CBP, "Notice of Initiation of Investigation and Interim Measures - EAPA Cons. Case 7838," dated March 11, 2024 (NOI) at 9; *see also* "TRLED - CF28 Issued to Musa Stone Concerning Siam Stone - (7838)," dated December 13, 2023.

¹² *See* KMGK CF-28 Response – Phu Son Entries; *see also* KMGK CF-28 Response – Badan Entry.

¹³ *See* CBP Memorandum, "Adding Information to the Administrative Record of EAPA 7838," dated February 29, 2024 (February Memorandum).

¹⁴ *See* NOI.

¹⁵ *Id.*; *see also* KMGK CF-28 Response – Badan Entry.

¹⁶ *See* NOI; *see also* CBP's CF-28 Issued to Musa Stone, dated December 13, 2024.

¹⁷ *See* NOI.

¹⁸ *Id.*

on their entries from Siam Stone and Badan based on a reasonable suspicion of evasion.¹⁹ The notice also informed the Importers and the Alleger that the entries covered by the investigation are those entered for consumption, or withdrawn from warehouse for consumption, from November 9, 2022, through the pendency of this investigation.²⁰ As part of interim measures, CBP suspended the Importers' entries from Siam Stone and Badan that entered after the initiation of the investigation pursuant to its authority under 19 U.S.C. § 1517(e).

CBP issued requests for information (RFI) to the Alleger, the Importers, Siam Stone, Badan, Hung Thinh, Phu Son, Phu Tan, and to the [entity].²¹ Most of these parties provided responses to their respective RFIs.²²

¹⁹ *Id.*; see also 19 U.S.C. § 1517(e); see also 19 C.F.R. § 165.24.

²⁰ See 19 C.F.R. § 165.2. Entries covered by the investigation include entries up to one year prior to the date CBP officially received the Allegations.

²¹ See CBP Email to the Alleger, "EAPA 7838, 7855, & 7886 – Questions Concerning the Three Allegations," dated December 20, 2023; see also Letter from CBP to [entity], "EAPA 7838 - Request for Information," dated March 11, 2024; see also Letter from CBP to Badan, "EAPA 7838 - Request for Information from Badan Building Materials Corporation," dated March 11, 2024; see also Letter from CBP to EAPA 7838 - Request for Information from [entity], dated March 11, 2024; see also Letter from CBP to Kings, "EAPA 7838 - Request for Information from King's Marble & Granite," dated March 11, 2024; see also Letter from CBP to KMGK, "EAPA 7838 - Request for Information from KMGK, LLC dba KMG Marble & Granite," dated March 11, 2024; see also Letter from CBP to Musa Stone, "EAPA 7838 - Request for Information from Musa Stone Import, Inc.," dated March 11, 2024; see also Letter from CBP to Phu Son, "EAPA 7838 - Request for Information from Phu Son JSC, also known as Empire Stone," dated March 11, 2024; see also Letter from CBP to Phu Tan, "EAPA 7838 - Request for Information from Phu Tan Co., Ltd, also known as Vicrown Quartz Slabs," dated March 11, 2024; see also Letter from CBP to Siam Stone, "EAPA 7838 - Request for Information from Siam Stone Product Company Limited," dated March 11, 2024; see also Letter from CBP to Badan, "EAPA 7838 - Request for Information from Badan Building Materials Corporation," dated May 14, 2024; see also Letter from CBP to KMGK, "EAPA 7838 - Request for Information from KMGK, LLC dba KMG Marble & Granite," dated May 14, 2024; see also Letter from CBP to Hung Thinh, "EAPA 7838 - Request for Information from Hung Thinh Produce and Import, also known as VietnamStone JSC," dated May 15, 2024; see also Letter from CBP to Kings, "EAPA 7838 - Request for Information from King's Marble and Granite," dated May 16, 2024; see also Letter from CBP to Musa Stone, "EAPA 7838 - Request for Information from Musa Stone Import, Inc.," dated May 16, 2024; see also Letter from CBP to Phu Son, "EAPA 7838 - Request for Information from Phu Son JSC, also known as Empire Stone," dated May 16, 2024; see also Letter from CBP to Phu Tan, "EAPA 7838 - Request for Information from Phu Tan Co., Ltd, also known as Vicrown Quartz Slabs," dated May 16, 2024.

²² See Letter from the Alleger, "EAPA 7838, 7855, & 7886 – Response to Questions Concerning the Three Allegations," dated January 5, 2024. The response's cover page is dated November 5, 2024, but it was submitted January 5, 2024. See also Letter from Badan, "EAPA 7838 - Request for Information from Badan Building Materials Corporation," dated April 11, 2024 (Badan RFI); see also Letter from KMGK, "EAPA Cons. Case 7838 – Response to March 11, 2024, CBP Request for Information," dated April 15, 2024 (KMGK RFI); see also Letter from Kings, "EAPA Investigation of Quartz Surface Products from China Shipped through Vietnam, the Philippines, and Thailand: RFI Response of King's Marble and Granite," dated April 23, 2024 (Kings RFI); see also Letter from Musa Stone, "EAPA Investigation of Quartz Surface Products from China Shipped through Vietnam, the Philippines, and Thailand: RFI Response of Musa Stone Import," dated April 23, 2024 (Musa Stone RFI); see also Letter from Phu Son, "EAPA 7838 – Request for Information from Phu Son JSC, also known as Empire Stone," dated April 6, 2024 (Phu Son RFI); see also Letter from Phu Tan, "RFI Response," dated April 8, 2024 (Phu Tan RFI); see also Letter from Hung Thinh, "Vietnam Supplier brief of information," dated April 11, 2024 (Hung Thinh RFI). Although CBP initially treated Hung Thinh's name as business confidential, Hung Thinh identified itself publicly in the public documents of its first RFI response. CBP then treated Hung Thinh's company name as public information; see also Letter from Badan, "Response to supplemental request for information," dated May 28, 2024 (Badan Supplemental RFI); see also Letter from Hung Thinh, "Hung Thinh Trading Produce and Import,"

However, Siam Stone and [entity] did not respond to their RFIs, and Musa Stone did not respond to its supplemental RFI. On June 21, 2024, KMGK submitted a voluntary factual submission composed of its correspondence with Badan and Phu Son.²³ CBP also added two memoranda to the case record composed of additional research results such as website screenshots and entry documents.²⁴ On July 22, 2024, Kings submitted written arguments asserting that it did not enter Chinese-origin QSP through evasion.²⁵

Analysis as to Evasion

Under 19 U.S.C. § 1517(c)(1)(A), to reach a determination as to evasion in this case, CBP must “make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion.” Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material and that results in any cash deposit or other security of any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”²⁶ As discussed below, substantial evidence on the record indicates that Musa Stone entered Chinese-origin QSP from Siam Stone and that KMGK entered Chinese-origin QSP from Badan through evasion.

Specifically, CBP determined that Musa Stone’s entry originated from Betop Stone in China. CBP previously found that Betop Stone facilitated evasion in EAPA 7522.²⁷ CBP’s research indicates that Betop Stone has continued to facilitate evasion through the entries of its U.S. affiliate Yingchat Stone Inc (Yingchat). [entity] was also involved in Musa Stone’s entry of Betop Stone QSP from Siam Stone.²⁸

With respect to KMGK’s entries of Chinese-origin QSP from Badan, CBP discovered that Badan had extensive connections to Chinese affiliates, at least two of whom had QSP factories in

dated May 29, 2024 (Hung Thinh Supplemental RFI); *see also* Letter from Phu Son, “EAPA 7838 – Request for Information from Phu Son JSC, also known as Empire Stone,” dated May 29, 2024 (Phu Son Supplemental RFI); *see also* Letter from Phu Tan, “RFI Response,” dated June 7, 2024 (Phu Tan Supplemental RFI); *see also* Letter from KMGK, “EAPA Cons. Case 7838 – Response To May 14, 2024, Supplemental Request For Information,” dated June 17, 2024 (KMGK Supplemental RFI); *see also* Letter from Kings, “EAPA Investigation of Quartz Surface Products from China Shipped through Vietnam, the Philippines, and Thailand: Supplemental RFI Response of King’s Marble and Granite,” dated June 19, 2024 (Kings Supplemental RFI).

²³ *See* Letter from KMGK, “EAPA Cons. Case 7838 – Voluntary Submission Of Email Correspondences,” dated June 21, 2024.

²⁴ *See* CBP Memorandum, “Adding Information to the Administrative Record of EAPA 7838,” dated June 17, 2024 (June Memorandum 1); *see also* CBP Memorandum, “Adding Information to the Administrative Record of EAPA 7838,” dated June 17, 2024 (June Memorandum 2).

²⁵ *See* Letter from Kings, “EAPA Investigation of Quartz Surface Products from China Shipped through Vietnam, the Philippines, and Thailand: King’s Marble and Granite Written Arguments,” dated July 22, 2024.

²⁶ *See* 19 C.F.R. § 165.1; *see also* 19 U.S.C. § 1517(a)(5)(A). According to 19 U.S.C. § 1517(a)(3), “The term ‘covered merchandise’ means merchandise that is subject to— (A) an antidumping duty order issued under section 1673e of this title; or (B) a countervailing duty order issued under section 1671e of this title.”

²⁷ *See* June Memorandum 1 at Attachment 3.

²⁸ *See* Musa Stone RFI at Exhibits 4-5.

China.²⁹ Furthermore, CBP discovered that Badan imported extensive quantities of Chinese-origin QSP from China into the Philippines.³⁰

Entries from Hung Thinh, Phu Son, and Phu Tan

While the transshipment point was initially unknown, because the Allegations asserted that the Importers were importing Chinese-origin QSP from Betop Stone, CBP investigated the Importers' entries that were most likely to contain Betop Stone's QSP, which were those from Hung Thinh, Phu Son, Phu Tan, Siam Stone, and Badan. CBP reviewed Hung Thinh's RFI responses, Kings' RFI responses, and Kings' CF-28 response concerning its entry from Hung Thinh.³¹ CBP did not observe any evidence of misclassification or of any other kind of evasion. Thus, CBP determines that Kings' entry from Hung Thinh was not entered through evasion. CBP reviewed Phu Son's RFI responses, KMGK's RFI responses, and KMGK's CF-28 response concerning its entries from Phu Son.³² CBP did not find evidence of evasion concerning KMGK's entries from Phu Son. CBP reviewed Phu Tan's RFI responses, Musa Stone's RFI response, and Musa Stone's CF-28 response concerning its entries from Phu Tan.³³ CBP did not find any evidence of evasion concerning Musa Stone's entries from Phu Tan. As such, CBP does not find that the Importers' entries from Hung Thinh, Phu Son, and Phu Tan entered the United States through evasion.

Siam Stone and Betop Stone

CBP reviewed Musa Stone's RFI response concerning its entry from Siam Stone together with other pertinent evidence on the record. As noted, Siam Stone did not respond to CBP's RFI, Musa Stone did not respond to CBP's supplemental RFI, and Musa Stone did not respond to CBP's CF-28 concerning this entry. CBP is applying adverse inferences against Siam Stone and Musa Stone for their failure to cooperate with these RFIs. Nevertheless, substantial evidence indicates that Musa Stone's entry from Siam Stone contained Betop Stone's Chinese-origin QSP slabs that were transshipped through Thailand.

[[date, description and location](#)] QSP.³⁴ [[description](#)] QSP slabs that "appear to be imitations of Cambria's Britannica product."³⁵ [[description](#)] QSP slabs illustrate that the back of those slabs were stamped "Musa Quartz," which is similar to Musa Stone's company name.³⁶ [[description](#)] also indicate that sides of those slabs were stamped

²⁹ See June Memorandum 1 at Attachments 20-24.

³⁰ See June Memorandum 2 at Attachment 2.

³¹ See Kings CF-28 Response; see also Kings RFI; see also Kings Supplemental RFI; see also Hung Thinh RFI; see also Hung Thinh Supplemental RFI.

³² See KMGK CF-28 Response – Phu Son Entries; see also KMGK RFI; see also KMGK Supplemental RFI; see also Phu Son RFI; see also Phu Son Supplemental RFI.

³³ See Musa Stone CF-28 Response; see also Musa Stone RFI; see also Phu Tan RFI; see also Phu Tan Supplemental RFI.

³⁴ See Musa Stone Allegation at 7 and Exhibit 7.

³⁵ *Id.*

³⁶ *Id.*

with the product names “Calacatta Brittanica A1818” and “Calacatta Brittanica [[code](#)].”³⁷ Product numbers beginning with an A-prefix are consistent with Betop Stone’s other product numbers, which often have similar product numbers and begin with an A-prefix, such as A1815B, A1818C, A1837C, and A1838L.³⁸ Moreover, record evidence indicates that Betop Stone uses the exact same product number and nearly the same product name.³⁹ Specifically, Betop Stone’s website and Stone Contact, a QSP vendor website, both list Calacatta Brittanica Warm A1818 among the products Betop Stone sells.⁴⁰ Thus, these websites indicate that the QSP slabs [[description](#)] originated from Betop Stone.

Record evidence indicates that Betop Stone manufactures its QSP in China and subsequently exports it from China. As an initial point, Betop Stone’s website indicates that it has a location in Hong Kong and another one near Xiamen City in Zhangzhou City, China.⁴¹ Betop Stone’s website states it is “{a} leading manufacturer and exporter of stone merchandise in China, the major product is quartz, we have our personal factory....”⁴² The LinkedIn profile of Betop Stone’s export manager also refers to Betop Stone’s factory in China.⁴³ Thus, Betop Stone has a factory in China.

Betop Stone’s website also states that it ships QSP from China.⁴⁴ It states that “{w}e ship material from China {and} Malaysia to {sic} Global World.... Also, we ship quartz from China to other country {sic} in the world.”⁴⁵ The LinkedIn profile of Betop Stone’s export manager notes the company uses China’s Qingdao Port.⁴⁶ Betop Stone’s website also noted that it used Qingdao’s port and Wuhan’s port.⁴⁷ Furthermore, Stone Contact lists “Port: Kelang-China” on the sales page of Betop Stone’s Calacatta Brittanica Warm A1818 product.⁴⁸ Although this reference mentions Malaysia’s Port Kelang, also known as Port Klang, it mentions China nonetheless. Thus, these references to China, in conjunction with other record evidence, support that the Calacatta Brittanica A1818 slabs [[description](#)] originated in China.

Although Betop Stone claims to have a factory in Malaysia, this claim is not credible. Betop Stone’s website claims “We ship material from China {and} Malaysia to {sic} Global World. We have {a} factory in Malaysia. We ship quartz slabs from Malaysia to USA....”⁴⁹ Likewise, the LinkedIn profile for Betop Stone’s export manager claims that Betop Stone has a factory in Malaysia and ships QSP from Port Klang.⁵⁰ Betop Stone’s website also asserted it used “Kelang”/Port Klang.⁵¹

³⁷ *Id.*

³⁸ See June Memorandum 1 at Attachment 4, pages 8, 12-13, 15.

³⁹ See Musa Stone Allegation at Exhibit 11, pages 1, 7.

⁴⁰ *Id.*

⁴¹ See June Memorandum 1 at Attachment 4, pages 3, 5.

⁴² *Id.* at Attachment 4, page 8.

⁴³ *Id.* at Attachment 4, pages 43-44.

⁴⁴ See Musa Stone Allegation at Exhibit 10, page 1.

⁴⁵ *Id.*

⁴⁶ See June Memorandum 1 at Attachment 4, page 44.

⁴⁷ *Id.* at Attachment 4, page 22.

⁴⁸ See Musa Stone Allegation at Exhibit 11, page 7.

⁴⁹ *Id.* at Exhibit 10, page 1.

⁵⁰ See June Memorandum 1 at Attachment 4, page 44.

⁵¹ *Id.* at Attachment 4, page 22.

Notably, no AD/CVD order on QSP from Malaysia exists and thus if Betop Stone produces QSP in Malaysia, no AD/CVD would apply to its exports to the United States.⁵² A company named Betop Stone (M) Sdn Bhd was registered in Malaysia on June 26, 2020, however, [data source] import data and CBP's entry data do not list any shipments of QSP from any version of the Betop Stone name from Malaysia to the United States.⁵³ Additionally, [data source] import data and CBP's entry data do not indicate that any of the Importers ever entered any Malaysian-origin QSP or any other kind of merchandise from Malaysia.⁵⁴

Betop Stone's references to Malaysia are consistent with its history of transshipment through Malaysia. During EAPA 7522, CBP investigated Betop Stone from November 2020 to November 2021.⁵⁵ At that time, Betop Stone's Director, James Zeng, claimed that two Malaysian companies, MEDA ZZ Enterprise (MEDA ZZ) and Stone Direct Sdn Bhd (Stone Direct), were Betop Stone's factories in Malaysia.⁵⁶ CBP determined that these companies were not Betop Stone affiliates but merely Malaysian transshipment points.⁵⁷ Although multiple items of evidence indicated that Betop Stone transshipped Chinese-origin QSP through MEDA ZZ and Stone Direct into the United States, the most glaring evidence came from [description].⁵⁸ Specifically, Betop Stone [individual and description].⁵⁹ [description].⁶⁰

Betop Stone has used other brand names and company names in addition to variations on the Betop Stone company name. Betop Stone's website mentions its Amani Stone and Amani Quartz brand names and lists their product catalogs.⁶¹ Correspondingly, Betop Stone's product numbers generally begin with A-prefixes and its director, James Zeng, is also listed on LinkedIn as the director of Amani Quartz.⁶²

Betop Stone is connected to Zhangzhou Baitong Import Export Trade Co., Ltd. (Baitong). The LinkedIn profile of Betop Stone's export manager indicates that he is also the international sales manager of Baitong.⁶³ A business information website with a URL address beginning with "baitong" instead lists the company name as "Zhangzhou Betop Import & Export Trade Co., Ltd."⁶⁴ Another business information website lists Baitong's website as www.cnbetop.com,

⁵² See <https://www.trade.gov/data-visualization/adcvd-proceedings> for a list of Malaysia's AD/CVD orders.

⁵³ See June Memorandum 1 at Attachment 4, page 48-49; See Allegations at Exhibit 3; see also EAPA Entry Report (7838), dated November 27, 2023; see also EAPA Entry Report (7838), dated November 27, 2023; see also EAPA Entry Report (7838), dated November 27, 2023.

⁵⁴ See Allegations at Exhibit 3; see also EAPA Entry Report (7838), dated November 27, 2023; see also EAPA Entry Report (7838), dated November 27, 2023; see also EAPA Entry Report (7838), dated November 27, 2023.

⁵⁵ See June Memorandum 1 at Attachment 3.

⁵⁶ *Id.*

⁵⁷ *Id.*

⁵⁸ *Id.*

⁵⁹ *Id.*

⁶⁰ *Id.*

⁶¹ *Id.* at Attachments 1, 2, and 4, page 4.

⁶² *Id.* at Attachments 1, 2, and 4.

⁶³ *Id.* at Attachment 4, page 43.

⁶⁴ *Id.* at Attachment 4, page 31.

which is a Betop Stone website address.⁶⁵ Correspondingly, www.cnbetop.com stated “Baitong, the manufacturer of excellent quartz!-Amanistone{.}”⁶⁶ Furthermore, Dunn & Bradstreet and Westlaw reports indicate that Baitong [[description](#)] Betop Stone.⁶⁷

Betop Stone might also use the name Quanzhou Bestone Import & Export Trade Co., Ltd. (Bestone). The three paragraphs in the “Company Profile” section of Bestone’s website has the same wording as the “About Our Company” section on Betop Stone’s website.⁶⁸ Also, the two sentences in the “Our Factory” section of Bestone’s website is the same as the two sentences in “Our Factory” section on Betop Stone’s website.⁶⁹ Like Betop Stone’s website, Bestone’s website contains Amani Quartz and Xiamen Lamitop Stone Co., Ltd. (Lamitop) e-catalogs.⁷⁰

Lamitop’s website and an employee’s LinkedIn page indicate that it is a Chinese supplier of sintered stone and QSP located in Xiamen, China.⁷¹ Lamitop’s website noted that its officials would share a booth with Betop Stone at a February 2024 trade fair in Brazil.⁷² Likewise, Betop Stone’s website has pictures of a trade fair booth with Lamitop’s name on it.⁷³ As noted, Betop Stone’s website lists several product catalogs for Lamitop.⁷⁴ Lamitop’s website states “Support by Betop Stone” and lists Betop Stone’s main contact email address, sale@cnbetop.com.⁷⁵ The LinkedIn profile of a Lamitop employee states that “Lamitop is an international company which is the un-disputed world leader in engineered quartz and marble based materials. We were founded in Xiamen in 2008. We also have offices in HK and USA.”⁷⁶ This is the same wording that one of Betop Stone’s sales representatives used to describe Betop Stone on her LinkedIn page.⁷⁷

Betop Stone’s U.S. Affiliate

In addition to China, Betop Stone has an affiliated company in the United States that has facilitated evasion as well. Betop Stone’s website states “... now we have company in Xiamen{,} Hongkong {sic} and New York.”⁷⁸ In April 2023, James Zeng posted on LinkedIn, “Come and visit us at Coverings during 18-21 Apr this year! We will be at Booth #5805 together {sic} our USA partner....”⁷⁹ In a picture accompanying that post, Yingchat’s name was displayed in large letters along with “Booth:5805 {sic}”, which indicated that Yingchat was

⁶⁵ *Id.* at Attachment 1.

⁶⁶ *Id.* at Attachment 4, page 32.

⁶⁷ *Id.* at Attachment 4, pages 5, 21, and Attachment 6, pages 1, 4-5.

⁶⁸ *Id.* at Attachment 4, page 29; *see also* Musa Stone Allegation at Exhibit 10, page 1.

⁶⁹ *See* June Memorandum 1 at Attachment 4, pages 1, 29.

⁷⁰ *Id.* at Attachment 4, pages 4, 30.

⁷¹ *Id.* at Attachment 4, pages 27-28, 45-46.

⁷² *Id.* at Attachment 4, page 25.

⁷³ *Id.* at Attachment 4, pages 2-3.

⁷⁴ *Id.* at Attachment 4, page 4.

⁷⁵ *Id.* at Attachment 4, page 26.

⁷⁶ *Id.* at Attachment 4, page 45.

⁷⁷ *Id.* at Attachment 4, page 33.

⁷⁸ *See* Musa Stone Allegation at Exhibit 10, page 1. Two other websites contain the same quotation affirming that Betop Stone has a company in the United States. *See* June Memorandum 1 at Attachment 4, pages 31, 38.

⁷⁹ *See* June Memorandum 1 at Attachment 4, page 20.

Betop Stone's USA partner.⁸⁰ Another Betop Stone salesperson posted the same picture mentioning Yingchat on LinkedIn and noted "Orlando exhibit 'Coverings' during 18-21, Apr., welcome {sic} come to our booth...."⁸¹ Corroborating these statements, the "Contact Us" section of Betop Stone's website listed Yingchat as its U.S. location and noted its address as "228 Papk {sic} Ave S #79525 New York, New York{.}"⁸² Correspondingly, Yingchat was registered in New York at 228 Park Ave S #79525 New York, NY and in Florida, the same state where the 2023 Coverings trade fair was held.⁸³ Thus, Yingchat is Betop Stone's U.S. affiliate.

The timeline of Yingchat's business registrations indicates that Betop Stone may have registered Yingchat in response to EAPA 7522's investigation. After CBP announced EAPA 7522's investigation on March 1, 2021,⁸⁴ Yingchat was registered on March 23, 2021 in Florida and then on July 16, 2021 in New York.⁸⁵ The person who registered Yingchat in both states, Sanbin Zeng (also known as Zanbin Zeng), has a similar name to the legal representative of Betop Stone's Baitong affiliate, Weibin Zeng, which may indicate a family relation and so further reinforces the connection to Betop Stone.⁸⁶ Notably, many other businesses are registered at Yingchat's Miami, New York City, and Albany addresses, including the suite/box number, which could indicate Yingchat's use of a virtual office/mailbox.⁸⁷ In light of Betop Stone's and Yingchat's involvement in transshipment, their use of a widely used virtual office/mailbox appears intended to disguise the actual location of Yingchat.

As noted, Yingchat is Betop Stone's U.S. affiliate but it is also a U.S. importer and appears to have entered Betop Stone's Chinese-origin QSP that was transshipped through other companies in Malaysia. Publicly available information evidence shows that Yingchat imported several shipments of QSP into the United States in 2022-2023.⁸⁸ Among these shipments, Yingchat imported QSP from the Malaysian companies Max Porcelain Ware & Ceramic Industry (Max Porcelain) in July 2022 and Gatevest Sdm Bhd (Gatevest) in December 2022.⁸⁹ The documents for the entry from Max Porcelain indicate that Yingchat imported [[merchandise](#)

].⁹⁰ Betop Stone's Amani Quartz catalog lists similar product names and numbers, such as [[merchandise and codes](#)

].⁹¹ The similarity of the entry's product name and number to those of Betop Stone, Yingchat's affiliation with Betop Stone, and Betop Stone's history of transshipment indicate that the entry's QSP originated from Betop Stone.

⁸⁰ *Id.*

⁸¹ *Id.* at Attachment 4, page 40.

⁸² *Id.* at Attachment 4, pages 55-56.

⁸³ *Id.* at Attachment 4, pages 58-9, 68-69. Yingchat's Florida registration was dissolved on January 14, 2022.

⁸⁴ *Id.* at Attachment 3, page 1.

⁸⁵ *Id.* at Attachment 4, pages 58-59, and Attachment 7.

⁸⁶ *Id.* at Attachment 1, pdf page 8, and Attachments 6-7.

⁸⁷ *Id.* at Attachment 4, pages 59-68.

⁸⁸ *Id.* at Attachment 4, pages 56-58.

⁸⁹ *Id.* at Attachment 4, pages 57-58.

⁹⁰ *Id.* at Attachment 13, pages 2-3.

⁹¹ *Id.* at Attachment 5, pages 7-8, 10, 14, 41-42, 50, 57-58, 217, 228.

The documents for the entry from Gatevest indicate that Yingchat imported QSP product numbers [[merchandise and codes](#)].⁹²

Betop Stone's Amani Quartz catalog lists the following corresponding product numbers: [[merchandise and codes](#)

].⁹³ As before, the similarity of the entry's product names and numbers to those of Betop Stone, Yingchat's affiliation with Betop Stone, and Betop Stone's history of transshipment indicate that this entry's QSP originated with Betop Stone. Furthermore, these entries were from two ostensibly separate companies and so it would be expected that they would have two different sets of product names and numbers; however, they exported Betop Stone product names and numbers to Yingchat, which confirms their origin was from Betop Stone.

In addition to Max Porcelain, Gatevest, and others, Yingchat imported two QSP entries from Siam Stone in June 2023 and August 2023.⁹⁴ These two entries demonstrate that Yingchat has a business relationship with Siam Stone. Online evidence indicates that Siam Stone was registered on February 17, 2017 in Thailand and is ostensibly located in Bangkok.⁹⁵ Siam Stone's website lists its main email address as contact@siam-stone.com.⁹⁶ CBP issued an RFI to Siam Stone at that email address on March 11, 2024; March 29, 2024; and on April 5, 2024.⁹⁷ CBP also mailed a physical copy of the RFI to Siam Stone's address in Thailand via FedEx on April 3, 2024.⁹⁸ However, in spite of these attempts, CBP never received a response from Siam Stone.

Musa Stone's Connection to Betop Stone

On March 29, 2024, CBP asked Musa Stone and its affiliate Kings for Siam Stone's contact email addresses; however, they did not provide any email addresses.⁹⁹ On April 2, 2024, CBP emailed Musa Stone again for Siam Stone's contact email addresses.¹⁰⁰ On April 4, 2024, Kings responded:

[[description](#)].¹⁰¹

As noted, multiple websites list [[email address](#)] as Betop Stone's email address.¹⁰² As such, Musa Stone contacted Betop Stone rather than Siam Stone for its purchase of QSP from Siam Stone.

⁹² *Id.* at Attachment 12, pages 2-3.

⁹³ *Id.* at Attachment 5, pages 10, 20, 23, 47, 50, 204-205, 219.

⁹⁴ *Id.* at Attachment 4, page 57; *see also* June Memorandum 2 at Attachment 3.

⁹⁵ *See* June Memorandum 1 at Attachment 18, pages 4-7.

⁹⁶ *Id.* at Attachment 18, pages 9, 11.

⁹⁷ *Id.* at Attachment 15, pages 1-2.

⁹⁸ *Id.* at Attachment 16.

⁹⁹ *Id.* at Attachment 14, pages 2-3.

¹⁰⁰ *Id.* at Attachment 14, page 2.

¹⁰¹ *Id.* at Attachment 14, page 1.

¹⁰² *Id.* at Attachment 4, pages 3, 5-6, 8, 21, 31-32, 56.

Musa Stone also paid [[entity](#)] rather than Siam Stone for the QSP. Specifically, the wire payment information for this entry indicated that Musa Stone sent [<#>] payments to [[entity](#)].¹⁰³ Musa Stone’s bank statements reflect one of these payments and describe it as “[[description](#)]”¹⁰⁴ This corroborates that the QSP originated with Betop Stone because Betop Stone’s [[entities](#)], received Musa Stone’s payments.

The timeline of Musa Stone’s entry from Siam Stone is consistent with [[description](#)]. Musa Stone’s entry from Siam Stone arrived on May 12, 2023, which is only [[description](#)].¹⁰⁵ As such, the entry’s arrival date fits comfortably within the amount of time for Musa Stone to obtain the QSP slabs, [[description](#)].

Finally, the commercial invoice Siam Stone issued to Musa Stone corroborates that the entry contained Betop Stone QSP. That commercial invoice described the items as “[[merchandise and codes](#)].”¹⁰⁶ As noted, the QSP slabs [[description](#)] were stamped “Calacatta Britannicca A1818” and “Calacatta Britannicca [[code](#)].”¹⁰⁷ Betop Stone’s website lists essentially the same product name and number.¹⁰⁸ Thus, these were the QSP slabs [[description](#)].

Based on the aforementioned evidence, substantial evidence exists that Musa Stone entered Betop Stone’s Chinese-origin QSP from Siam Stone.

Badan

Although evidence does not indicate that Betop Stone transshipped QSP through Badan, substantial evidence on the record indicates that Badan’s Chinese affiliates transshipped Chinese-origin QSP through Badan nonetheless.

Badan stated its holding company Ba Dan, located in Macau, China, registered it in the Philippines.¹⁰⁹ However, Badan disclaimed affiliation to companies beyond Ba Dan. CBP asked Badan if it was under common control with any other company and Badan responded “No, we are not.”¹¹⁰ Badan also claimed that it was “not a subsidiary of any other company,” that it did not have a parent company, and that “we don’t belong {sic} any part of a group company.”¹¹¹ However, record evidence indicates that Badan is one of several companies that is part of the

¹⁰³ See Musa Stone RFI at Exhibit 4, page 51.

¹⁰⁴ *Id.* at Exhibit 5, page 14.

¹⁰⁵ See Musa Stone Allegation at 7 and Exhibit 3, page 4, row 8 and Exhibit 7; *see also* EAPA Receipt Report (7855), dated December 4, 2023.

¹⁰⁶ See Musa Stone RFI at Exhibit 4, page 50.

¹⁰⁷ See Musa Stone Allegation at 7 and Exhibit 7.

¹⁰⁸ *Id.* at Exhibit 11. In the same exhibit, a screenshot from the QSP vendor website Stone Contact also listed this as a Betop Stone product name and number.

¹⁰⁹ See Badan RFI at 19; *see also* Badan Supplemental RFI at 4; *see also* NOI at 7.

¹¹⁰ See Badan RFI at 21.

¹¹¹ *Id.* at 19-20; *see also* Badan Supplemental RFI at 4; *see also* NOI at 7.

New Zhong Yuan Group, headquartered in China. Therefore, Badan is part of a group company, is a subsidiary, and is under common control with other companies. As such, CBP finds that Badan made false statements regarding its affiliation status.

Various sources reflect Badan's affiliation with the New Zhong Yuan Group. A picture from the [[description](#)

].¹¹² The "From:" line of an email to KMGK indicates "[[description](#)

].¹¹³ Elsewhere, Badan directly affirmed that [[entities and description](#)].¹¹⁴ Badan's president and shareholder, Zefeng Zu, worked for New Zhong Yuan Group before Badan.¹¹⁵ The LinkedIn profile of a sales representative in China indicates that he currently simultaneously works for Badan and "NewZhongYuan Export Company," which appears to be a New Zhong Yuan Group subsidiary.¹¹⁶ His profile stated that "Badan Building Material co. {sic} is our invest {sic} factory{.}"¹¹⁷ In one of his posts he appears to attribute the QSP factory and slabs jointly to New Zhong Yuan Group and Badan by stating "NewZhongYuan Badan Quartz Stone Slab & Cut to Size Factory."¹¹⁸

CBP asked Badan for "New Zhong Yuan's" articles of incorporation and business license.¹¹⁹ In response, Badan provided those documents for [[entity](#)].¹²⁰ [[entities and description](#)

] employee, which reflects their affiliation.¹²¹ [[entity](#)]'s articles of incorporation indicate it is located in [[location](#)] and its shareholder is [[entity](#)

].¹²² CBP does not have shareholder information for [[entity](#)]. Nevertheless, [[individual](#)] is listed as the legal representative on [[entity](#)]'s articles of incorporation and business license.¹²³ Badan stated that Wang Guangyan permanently resides in China and presently works for both Badan (as its sales department manager) and New Zhong Yuan Ceramics.¹²⁴ As such, this combined evidence connects New Zhong Yuan Ceramics to New Zhong Yuan Group and to Badan.

The website of a Badan affiliate named Sanary Building Materials Co., Ltd (Sanary Stone) denotes that "Fok Chichang, {is} the President of XinZhongYuan Ceramic Group;" a common

¹¹² See KMGK Supplemental RFI at Exhibit 14. [[entity and description](#)]."

¹¹³ See Badan Supplemental RFI at Appendix 19, pages 13-14, 46-47.

¹¹⁴ *Id.* at 27.

¹¹⁵ See Badan RFI at 15 and Appendix 4; *see also* Badan Supplemental RFI at 5, 18. He owns [#] percent of Badan.

¹¹⁶ See June Memorandum 1 at Attachment 22, page 57.

¹¹⁷ *Id.*

¹¹⁸ *Id.* at Attachment 22, page 59.

¹¹⁹ See Badan Supplemental RFI at 12.

¹²⁰ *Id.* at 12 and Appendices 13-16.

¹²¹ *Id.* at Appendix 28. This is pdf page 568.

¹²² *Id.* at Appendix 11 and Appendix 12, pages 185, 187.

¹²³ *Id.* at Appendix 11; Appendix 12, page 10; and Appendices 13-14.

¹²⁴ See Badan RFI at 16 and Appendix 31; *see also* Badan Supplemental RFI at 12, 19-20.

translation of the Romanized Chinese word Xin is “new.”¹²⁵ If Chichang is an alternate spelling of Chi Cheong, then Fok Chichang and Fok Chi Cheong are the same person and New Zhong Yuan Ceramic Group is affiliated to Badan through common management/[[description](#)].¹²⁶ Fok Chi Cheong and Fok Wai San are the owners of Badan’s holding company Ba Dan.¹²⁷ As such, New Zhong Yuan Ceramic Group would be affiliated with Ba Dan and Badan. Fok Chi Cheong and Fok Wai San are also [[description and entity](#)].¹²⁸

Sanary Stone’s website indicates the existence of another New Zhong Yuan Group subsidiary named Xin Zhong Yuan Building Material Corp (New Zhong Yuan Building Materials).¹²⁹ The “Group Branches” section of Sanary Stone’s website referred to the “existing brands of XinZhongYuan Group” and showed an organizational chart with New Zhong Yuan Building Materials as the parent company in the top position with arrows pointing down from it toward the subsidiary companies Wan Feng Eng. Stone (also known as Wanfeng Compound Stone Technology Co. Ltd (Wanfeng)), Sanary Stone, and “Xin Zhong Yuan Ceramics.”¹³⁰ This website states that Simon Fok is “the CEO of XinZhongYuan Building Material Corp{.}”¹³¹ Because Simon Fok is the CEO of a New Zhong Yuan Group subsidiary and has the same family name as Fok Chichang, Fok Chi Cheong, and Fok Wai San, Simon Fok may be the same person as one of them. If Simon Fok is the same person as one of them, that would indicate that New Zhong Yuan Building Material Corp. is affiliated with Badan. CBP asked for Simon Fok’s birthname to clarify his identity, and Badan claimed it was [[individual](#)].¹³² However, because this birthname does not incorporate Simon Fok’s family name, Badan appears to have provided CBP with the wrong birthname.

Sanary Stone’s website has an article further reflecting New Zhong Yuan’s affiliation with Badan. This article was titled “How Badan is Born? A Result of Win-Win Cooperation Between Newzhongyuan {sic} & Ayala Group{.}”¹³³ It stated that “Badan is the only quartz stone factory invested by Chinese enterprises overseas with a whole line, covering an area of 30 mu....”¹³⁴ It is noteworthy that Ayala Group’s ownership is at most [#] percent of Badan; therefore, it is relatively insignificant.¹³⁵ However, Badan is [#] percent owned by Ba Dan in China; thus, New Zhong Yuan Group’s involvement is through its Chinese affiliate Ba Dan.¹³⁶

A former Badan intern further described how Ba Dan, Badan, Sanary Stone, and New Zhong Yuan Group were related to each other in a LinkedIn article. She said that Badan was:

¹²⁵ See June Memorandum 1 at Attachment 22, pages 14, 19.

¹²⁶ See Badan Supplemental RFI at 16. Fok Chi Cheong is misspelled as “For Chi Cheong” in the RFIs a few times.

¹²⁷ See Badan RFI at 19; see also Badan Supplemental RFI at 6, 8, 16-17, and Appendix 2.

¹²⁸ See Badan Supplemental RFI at 6, 8, 16-17, and Appendix 2.

¹²⁹ See June Memorandum 1 at Attachment 22, pages 14, 19.

¹³⁰ *Id.* at Attachment 22, page 18. Technically it says, “Xin Zhong Yuan Building Materials.”

¹³¹ *Id.* at Attachment 22, pages 14, 19.

¹³² See Badan Supplemental RFI at 6.

¹³³ See June Memorandum 1 at Attachment 22, page 14.

¹³⁴ *Id.*

¹³⁵ See Badan RFI at Appendix 4. This [[description](#)].

¹³⁶ *Id.* at 19 and Appendix 4. Badan’s [[description](#)].

invested by Macao Badan Building Material Cooperation ... My work team is Sanary Building Materials, the marketing center of Badan Building Materials Corporation, and also a trading platform for building materials. We both belongs {sic} to New Zhong Yuan group {sic} in Guangdong, China.¹³⁷

Notably, Badan claimed that Ba Dan “has no parent companies{.}”¹³⁸ However, the above evidence indicates that it is a false statement.

In addition to Badan’s Philippine factory, the New Zhong Yuan Group has extensive connections to factories in China. The LinkedIn profile of a New Zhong Yuan employee posted a video he described as “NewZhongYuan Badan Quartz Stone Slab & Cut to Size Factory.”¹³⁹ Captions from this video denoted “We are one of the largest manufacturers in China since 1984.... We have two factories, one in China, one in the Philippines.”¹⁴⁰ The LinkedIn profile of Badan’s sales manager, located in Foshan City, China, indicated that New Zhong Yuan Group was the headquarters of 10 factories in China and one factory in the Philippines (Badan):¹⁴¹

Headquarter {sic}
New Zhongyuan {sic} Group
Since 1984
10 Factories in China, 1 factory in the Philippines
Address:Fosha, {sic} China
...
Philippine Factory
Badan Building Materials Corporation¹⁴²

Correspondingly, Sanary Stone’s website mentioned that New Zhong Yuan Group had “Ten Manufacturing Bases across China mainland{.}”¹⁴³ Badan indicated that one of these factories was named [[entity](#)].¹⁴⁴ Thus, based on all the aforementioned evidence, New Zhong Yuan Group has QSP factories in China.

New Zhong Yuan Group appears to have built Badan’s factory as part of China’s Belt and Road Initiative. As such, New Zhong Yuan Group’s 2023 catalog states:

{I}n response to the national strategy ‘The Belt and Road’, New Zhong Yuan started to invest and build oversea factories. Our Philippines Quartz production base is located in the Alviera Industrial Park, Porac, Pampanga, Region III and was put into operation in July 2019. We manufacture premium quartz surfaces which are used in commercial and residential projects world-wide.¹⁴⁵

¹³⁷ See June Memorandum 1 at Attachment 22, pages 62-63.

¹³⁸ See Badan Supplemental RFI at 5.

¹³⁹ See June Memorandum 1 at Attachment 22, page 59.

¹⁴⁰ *Id.*

¹⁴¹ *Id.* at Attachment 22, page 88.

¹⁴² *Id.*

¹⁴³ *Id.* at Attachment 22, page 15.

¹⁴⁴ See Badan Supplemental RFI at 9-10.

¹⁴⁵ See Badan RFI at Appendix 22, page 2.

Sanary Stone’s website likewise indicated that Badan was constructed as part of a “Go Global” strategy, the goal of which is to “Build factories overseas to avoid anti-dumping {sic}, to win the global market share back.”¹⁴⁶

Regarding Sanary Stone’s relationship to Badan, its website states that Sanary Stone is “the subsidiary sales and marketing branch of Badan Building Materials Corporation{.}”¹⁴⁷ Additionally, a Badan product profile listed on the Stone Contact vendor website corroborates that Sanary Stone is affiliated with Badan as part of the New Zhong Yuan Group. It stated that “Sanary belongs to its mother company New Zhong Yuan Group in China.”¹⁴⁸ Badan noted that Sanary Stone was the business name of Foshan Xinnanyue Building Ceramics Co., Ltd (Xinnanyue).¹⁴⁹ Xinnanyue is located in Foshan City, China and its [description] shareholder is [entity].¹⁵⁰ Furthermore, Badan’s [individual and position] is the legal representative listed on Sanary Stone/Xinnanyue’s business license.¹⁵¹

The previous information indicates that Sanary Stone and Badan are affiliated. However, in its initial RFI response, Badan claimed that “Sanary Stone is just one of the sales company who sell Badan product before. But the sales relationship was canceled since 2021 {.}”¹⁵² As such, Badan initially attempted to falsely portray Sanary Stone merely as a company that formerly sold Badan’s QSP. CBP asked Badan to “provide any supporting documentation to show separation between Sanary Stone and Badan;” however, Badan could only provide a photograph of a single sheet of paper stating:

[entity] hereby issue this statement to clarify that [entity] is no longer a sales company of us any more. The business connections including goods and services between [entities] [date] is ended on the issue date of this statement ... []

This document is not an official document but merely a printed sheet of paper that repeated Badan’s claim. Therefore, it does not substantiate that any separation whatsoever occurred between Sanary Stone and Badan. Additionally, regardless of whether Badan’s QSP is sold under the Sanary Stone or New Zhong Yuan Group name, Sanary Stone/Xinnanyue’s articles of incorporation indicate that it is owned by [entity]. Furthermore, the legal representative listed on Sanary Stone/Xinnanyue’s business license [individual and entity].¹⁵³ Moreover, Badan eventually admitted that [entities and description]

¹⁴⁶ See June Memorandum 1 at Attachment 22, page 15.

¹⁴⁷ *Id.* at Attachment 22, page 9.

¹⁴⁸ *Id.* at Attachment 22, page 28.

¹⁴⁹ See Badan Supplemental RFI at 20.

¹⁵⁰ *Id.* at Appendix 5 and Appendix 6, pages 1, 3.

¹⁵¹ See Badan RFI at 16 and Appendix 31; see also Badan Supplemental RFI at Appendices 7-8.

¹⁵² See Badan RFI at 21.

¹⁵³ *Id.* at 16 and Appendix 31; see also Badan Supplemental RFI at 12, 19-20 and Appendices 7-8.

].¹⁵⁴ Because Badan is a part of the New Zhong Yuan Group, Sanary Stone and Badan are still affiliated and no separation occurred.

New Zhong Yuan Group, Badan, and Sanary Stone are also affiliated with Wanfeng. Badan claimed that New Zhong Yuan, Sanary Stone, and Wanfeng were sales teams representing Badan.¹⁵⁵ Wanfeng's articles of incorporation indicate it is in [location] and its [#] percent shareholder is [entity] and its [#] percent shareholder is [entity].¹⁵⁶ CBP does not have shareholder information on [entity]. Nevertheless, other record evidence denotes Wanfeng's and Badan's affiliation with each other as part of the New Zhong Yuan Group.

The work experience section of a Wanfeng sales representative lists her employment with Wanfeng but has Badan's company logo next to Wanfeng's company name.¹⁵⁷ She also denoted that Wanfeng was part of the New Zhong Yuan Group by stating "Here in New Zhong Yuan, we aim at give you a one-stop service for your residential and commercial projects...."¹⁵⁸ Likewise, the LinkedIn profile of another Wanfeng sales representative stated "Wanfeng Stone located in South of China, it's the sole stone brand under its mothergroup Guangdong New Zhong Yuan Group.... Wan Feng is one subsidiary of New Zhong Yuang {sic} Group...."¹⁵⁹ Moreover, Badan stated that [entities and description].¹⁶⁰ Wanfeng's 2020 catalog also mentions that "Wanfeng has two main production base{s}, one is in China and another one is in the Philippines."¹⁶¹ The LinkedIn profile of a Wanfeng sales representative likewise stated that Wanfeng had a "Production Base in Heyuan, China" and another "Production Base in Portac, Philippines{.}"¹⁶² Moreover, Badan admitted in an RFI response that Wangfeng's factory was in Heyuan City, Guangdong Province, China.¹⁶³

Record evidence indicates that Badan still sources Chinese-origin QSP from its affiliated factories in China. Badan's financial statement for 2022 said that:

[

description of business activities

¹⁵⁴ See Badan Supplemental RFI at 27.

¹⁵⁵ *Id.* at 21, 27.

¹⁵⁶ *Id.* at Appendix 9 and Appendix 10, pages 131, 134.

¹⁵⁷ See June Memorandum 1 at Attachment 22, page 68.

¹⁵⁸ *Id.* at Attachment 22, page 70.

¹⁵⁹ *Id.* at Attachment 22, page 86.

¹⁶⁰ See Badan Supplemental RFI at 27.

¹⁶¹ See June Memorandum 1 at Attachment 21, page 2. It also provides Badan's address as the address of its "Philippines factory" on page 1.

¹⁶² *Id.* at Attachment 22, page 67.

¹⁶³ See Badan Supplemental RFI at 9, 20.

] {emphasis added}.¹⁶⁴

The fact that the wording does not mention Badan producing QSP slabs from raw materials such as quartz sand and a resin binder, but instead mentions “[description]” implies that Badan did not produce those [merchandise] but obtained them from somewhere else.¹⁶⁵ In a more-direct reference, Badan’s 2022 financial statement said that Badan’s “[description].”¹⁶⁶ This statement denotes that Badan [merchandise and description]. These two statements viewed together indicate that Badan produces some of their QSP [merchandise description].

Importantly, Badan repeatedly indicated that it does not produce or sell any non-QSP products, such as natural stone. As such, Badan has stated:

- “There are no non-quartz products in the covered merchandise.”¹⁶⁷
- “There are no catalogs for other products, such as granite and marble, under the names of Badan, New Zhong Yuan, and Wanfeng Stone{.}”¹⁶⁸
- “All item codes in the merchandise are for quartz stone.”¹⁶⁹
- “NO, badan had never export {sic} non-QSP products to USA.”¹⁷⁰

Badan provided a sales chart listing Badan’s sales during 2022-2024 to the United States, the Philippines, and to all other countries.¹⁷¹ CBP requested that Badan include a category in that chart for all non-QSP products, such as marble, granite, or any other kind of natural stone.¹⁷² In response, Badan included this category in the sales chart it provided but it did not denote any sales of any non-QSP products to the United States, Philippines, or to any other country in that category.¹⁷³ In other words, in that chart, all quantity fields for sales of non-QSP products to all countries listed a “[#];” therefore, Badan only sells and produces QSP. As such, Badan’s [merchandise] were not composed of any kind of natural stone but were necessarily QSP.

Any [merchandise] Badan imported from China would continue to be Chinese origin regardless of any additional work Badan performed on them in the Philippines.

¹⁶⁴ See Badan RFI at Appendix 7, page 34.

¹⁶⁵ See June Memorandum 1 at Appendix 22, pages 6-7 where Badan states its QSP is composed of “93% Natural Quartz Sand, 7% Resin{.}”

¹⁶⁶ See Badan RFI at Appendix 7, pages 34. Page 21 has similar language as well.

¹⁶⁷ See Badan Supplemental RFI at 42. This was in response to CBP’s question “Please provide all the item codes and descriptions for non-quartz products.”

¹⁶⁸ *Id.* at 28.

¹⁶⁹ *Id.* at 41.

¹⁷⁰ *Id.* at 42.

¹⁷¹ *Id.* at 42 and Appendix 24.

¹⁷² *Id.* at 42.

¹⁷³ *Id.* at Appendix 24.

The scope of the *AD/CVD Orders* indicates that a QSP slab is covered merchandise regardless of whether any additional production steps are performed on it.¹⁷⁴ The *AD/CVD Orders* state:

Quartz surface products consist of slabs and other surfaces created from a mixture of materials that includes predominately silica (e.g., quartz, quartz powder, cristobalite) as well as a resin binder.... Quartz surface products are typically sold as rectangular slabs with a total surface area of approximately 45 to 60 square feet and a nominal thickness of one, two, or three centimeters. However, the scope of the orders includes surface products of all other sizes, thicknesses, and shapes. In addition to slabs, the scope of the orders includes, but is not limited to, other surfaces such as countertops, backsplashes, vanity tops.... Certain quartz surface products are covered by the orders whether polished or unpolished, cut or uncut, fabricated or not fabricated, cured or uncured, edged or not edged, finished or unfinished, thermoformed or not thermoformed, packaged or unpackaged, and regardless of the type of surface finish....

Subject merchandise includes material matching the above description that has been finished, packaged, or otherwise fabricated in a third country, including by cutting, polishing, curing, edging, thermoforming, attaching to, or packaging with another product, or any other finishing, packaging, or fabrication that would not otherwise remove the merchandise from the scope of the orders if performed in the country of manufacture of the quartz surface products.¹⁷⁵

Chinese-origin QSP slabs are covered by the scope of the *AD/CVD Orders* regardless of any cutting, edging, finishing, or fabrication performed in a third country such as the Philippines.¹⁷⁶ In other words, if Badan performed any or all of these activities in the Philippines on [merchandise] from China, those activities would not transform them from Chinese-origin QSP [description] into Philippine-origin QSP for purposes of coverage under the *AD/CVD Orders*.¹⁷⁷ The *AD/CVD Orders* further indicate that even if Badan performed those activities in the Philippines, those activities would not remove the QSP [merchandise] from the scope of the *AD/CVD Orders* or affect their country of origin.¹⁷⁸ Because these additional production steps do not affect the country of origin, all of the [merchandise] that Badan imported into the Philippines from China remain Chinese-origin QSP covered by the *AD/CVD Orders*.

Badan's financial statement for 2022 claimed that the other income amount during 2022 was [value].¹⁷⁹ The other income amount was composed of "[description]."¹⁸⁰ Badan imported "[merchandise]" in 2022 that were valued at \$[value].¹⁸¹ As such, the other income [description] would likely have exceeded their import value of \$[value] and,

¹⁷⁴ See *AD/CVD Orders*; see also KMGK Allegation at Exhibit 1.

¹⁷⁵ *Id.*

¹⁷⁶ *Id.*

¹⁷⁷ *Id.*

¹⁷⁸ See *AD/CVD Orders*.

¹⁷⁹ See Badan RFI at Appendix 7, pages 34. Page 21 has a similar language as well.

¹⁸⁰ *Id.*

¹⁸¹ See June Memorandum 2 at Attachment 2.

therefore, would have been much higher than \$[value]. Thus, the financial statement for 2022 appears to have vastly understated Badan's [description].

As the chart below indicates, Badan imported large quantities of "[merchandise and location] in 2022-2024.¹⁸² In fact, Badan imported more [merchandise, location, and description] it imported from all countries during the same period.¹⁸³ As discussed, these [merchandise] could not have been natural stone but were instead Chinese-origin QSP. Importantly, record evidence indicates that Badan obtained all these [merchandise, location, and entities].¹⁸⁴ This is corroborated by other evidence that denotes that New Zhong Yuan Group has 10 factories in China, one of which is named "[entity]."¹⁸⁵

Badan's Imports				
	HS Codes	Description	Total Net Weight (Kg)	Imported from:
2022	[code]	[description]	#	[location]
2022	[code]	[description]	#	[location]
2023	[code]	[description]	#	[location]
2023	[code]	[description]	#	[location]
2024*	[code]	[description]	#	[location]
2024*	[code]	[description]	#	[location]
Total	[code]	[description]	#	[location]
Total	[code]	[description]	#	[location]

Source: June Memorandum 2 at Attachment 2.

* This covers only the first two months of 2024.

It is noteworthy that CBP requested all commercial invoices, bills of lading, Philippine import declarations, and payment documents for all of Badan's imports into the Philippines during the months of September 2022, October 2022, July 2023, and August 2023.¹⁸⁶ Record evidence indicates that Badan received import shipments of the raw materials [materials] in September 2022, July 2023, and August 2023 and of [merchandise] in September 2022, October 2022, July 2023, and August 2023.¹⁸⁷ Badan provided CBP with the documents for its import shipments of raw materials during those months but did not provide any documents pertaining to their imports of [merchandise] during those months.¹⁸⁸

Screenshots from Badan's and Sanary Stone's websites both denote that Badan's QSP was composed of "93% Natural Quartz Sand{.}"¹⁸⁹ Using this percentage, the amount of QSP that Badan might have produced in the Philippines can be roughly calculated. It is noteworthy that, for the sake of convenience, this calculation assumes that none of the quartz sand went into defective QSP or became scrap. As the amount of defective QSP and/or scrap increases, the amount of QSP a certain amount of quartz sand could produce correspondingly decreases. Using

¹⁸² *Id.*

¹⁸³ *Id.*

¹⁸⁴ *Id.*

¹⁸⁵ See June Memorandum 1 at Attachment 22, page 88; see also Badan Supplemental RFI at 9-10.

¹⁸⁶ See Badan Supplemental RFI at 46.

¹⁸⁷ See June Memorandum 2 at Attachment 2.

¹⁸⁸ See Badan Supplemental RFI at Appendix 27.

¹⁸⁹ See June Memorandum 1 at Attachment 22, pages 6, 7, 10.

this formula, Badan may have produced as much as [#] kg of QSP in the Philippines in 2022-2024, compared to [#] kg of QSP it imported from [location] in 2022-2024.¹⁹⁰

Badan's Production of QSP in the Philippines from Raw Materials					
	HS Codes	Description	Total Net Weight (Kg)	Maximum Possible Philippine-Origin QSP (Kg)**	
2022	[code]	[description]	[#]	[#]	[#]
2023	[code]	[description]	[#]	[#]	[#]
2024*	[code]	[description]	[#]	[#]	[#]
Total	[code]	[description]	[#]	[#]	[#]

Source: June Memorandum 2 at Attachment 2.

* This covers only the first two months of 2024.

** This quantity was obtained by dividing the [material] weights by 0.93.

Based on the above two charts, [#] percent of Badan's QSP appears to have been Chinese-origin during 2022-2024.¹⁹¹ Badan exported QSP to many U.S. companies other than KMGK.¹⁹² As such, CBP cannot be certain that Badan used Philippine-origin QSP rather than Chinese-origin for KMGK's two entries from Badan. Therefore, CBP finds that both KMGK entries from Badan were Chinese-origin QSP.

In addition to "[merchandise]," Badan also imported [#] small shipments of "[merchandise and location]."¹⁹³ Specifically, Badan imported [weights, merchandise and locations].¹⁹⁴ Badan imported these [description] under HS [#], which is the same chapter and heading as its imported "[merchandise]."¹⁹⁵ It is noteworthy that HS [#] pertain to the raw materials [materials], respectively.¹⁹⁶ Thus, Badan did not import [merchandise] of those raw materials but imported [merchandise]. The fact that Badan imported these [merchandise] rather than using [merchandise description] provides additional corroborative evidence that Badan is still using QSP from its affiliated Chinese factories.¹⁹⁷

Adverse Inferences

CBP's regulations at 19 C.F.R. § 165.6(a) state that if "the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with a request for information made by CBP, CBP may apply an inference adverse to the interests of that party in selecting from among the facts otherwise available to make the determination as to evasion...."¹⁹⁸ Musa Stone and foreign producers or exporters of the covered merchandise, Siam Stone and Badan, failed to cooperate and comply to the best of their ability with CBP's requests for information.

¹⁹⁰ See June Memorandum 2 at Attachment 2.

¹⁹¹ [numbers] percent.

¹⁹² See February Memorandum at Attachment 2.

¹⁹³ See June Memorandum 2 at Attachment 2.

¹⁹⁴ *Id.* These quantities do not include the one small [#] shipment of a "[merchandise]" that Badan imported from [location and year].

¹⁹⁵ *Id.*

¹⁹⁶ *Id.*

¹⁹⁷ *Id.*

¹⁹⁸ See also 19 U.S.C. § 1517(c)(3)(A).

Musa Stone did not cooperate with one of CBP's requests for information. Specifically, Musa Stone did not submit a response to CBP's supplemental RFI. CBP issued that supplemental RFI to Musa Stone on May 16, 2024. On May 24, 2024, Musa Stone requested an extension of the supplemental RFI's response deadline.¹⁹⁹ After CBP granted Musa Stone an extension, Musa Stone requested a second extension on June 7, 2024.²⁰⁰ After CBP granted Musa Stone a second extension, Musa Stone requested a third extension on June 12, 2024.²⁰¹ In response, CBP extended Musa Stone's supplemental RFI response deadline a third time, to June 19, 2024.²⁰² However, Musa Stone did not submit its supplemental RFI by that deadline nor did it request another extension. On June 20, 2024, CBP reminded Musa Stone that its deadline had passed and asked it to submit its supplemental RFI response by June 24, 2024.²⁰³ However, CBP did not receive any response from Musa Stone. As such, Musa Stone failed to cooperate and comply to the best of its ability with CBP's request for information.

Siam Stone also did not cooperate with CBP's request for information. CBP issued an RFI to Siam Stone on March 11, 2024, and then on March 29, 2024, and April 5, 2024, reminded Siam Stone that it had not received its response.²⁰⁴ CBP also mailed a physical copy of the RFI to Siam Stone's address in Thailand via FedEx on April 3, 2024.²⁰⁵ However, Siam Stone did not respond to CBP. As such, Siam Stone failed to cooperate and comply to the best of its ability with CBP's RFI.

Badan made a materially false statement and omitted material evidence, both of which exhibited a failure to cooperate and comply to the best of its ability with CBP's RFIs. CBP's regulations provide that "{a}ny interested party that provides a material false statement or makes a material omission or otherwise attempts to conceal material facts at any point in the proceedings may be subject to adverse inferences (see § 165.6)..."²⁰⁶ Previously discussed evidence indicates that Badan is a subsidiary of the New Zhong Yuan Group, along with several other companies. However, when CBP asked Badan if it was under common control with any other company, Badan responded "No, we are not."²⁰⁷ Badan also claimed that it was "not a subsidiary of any other company" and that "we don't belong {sic} any part of a group company."²⁰⁸ Badan's statements appear to be attempts to distance itself from its Chinese parent company and its Chinese affiliates, who own as many as 10 QSP factories in China. Badan also failed to provide the import documents for its imports of [[merchandise](#)] in September 2022, October 2022, July 2023, and August 2023.²⁰⁹ Consequently, CBP finds that Badan made a false statement and

¹⁹⁹ See Letter from Musa Stone, "Quartz Surface Products from China Shipped through Vietnam, the Philippines, and Thailand: Extension Request for Supplemental Questionnaires," dated May 24, 2024.

²⁰⁰ See Letter from Musa Stone, "Quartz Surface Products from China Shipped through Vietnam, the Philippines, and Thailand: Second Extension Request for Supplemental Questionnaires," dated June 7, 2024.

²⁰¹ See Letter from Musa Stone, "Quartz Surface Products from China Shipped through Vietnam, the Philippines, and Thailand: Third Extension Request for Supplemental Questionnaire Response," dated June 12, 2024.

²⁰² See Email from CBP, "EAPA 7838 – Extension of RFI Response Deadline," dated June 15, 2024.

²⁰³ See Email from CBP, "EAPA 7838 – Extension of RFI Response Deadline," dated June 20, 2024.

²⁰⁴ See June Memorandum 1 at Attachment 15, pages 1-2.

²⁰⁵ *Id.* at Attachment 16.

²⁰⁶ See 19 C.F.R. § 165.5(b)(3).

²⁰⁷ See Badan RFI at 21.

²⁰⁸ *Id.* at 19-20; see also Badan Supplemental RFI at 4; see also NOI at 7.

²⁰⁹ See June Memorandum 2 at Attachment 2.

omitted material evidence and so has not cooperated and complied to the best of its ability with CBP's requests for information during the investigation.

CBP is drawing an inference that is adverse to the interests of Musa Stone, Siam Stone, and Badan by inferring that all of the QSP that Siam Stone and Badan exported to the United States during the POI was Chinese-origin QSP.²¹⁰ To draw this adverse inference, CBP is relying on factual information on the record, including the facts that Siam Stone has a business relationship with Betop Stone's affiliate Yingchat, exported the [description] product numbers to Musa Stone that Betop Stone sells, Musa Stone paid [entity] rather than Siam Stone for the QSP, and Musa Stone received its shipment from Siam Stone before [description].²¹¹

CBP is also relying on the fact Badan imported numerous shipments of "[merchandise and location] into the Philippines.²¹² Because Badan only produces and sells QSP, these [merchandise] were Chinese-origin QSP. Although CBP is applying an adverse inference with respect to Musa Stone, Siam Stone, and Badan, enough evidence exists on the record to determine that there is evasion without its use.

Therefore, CBP determines that substantial evidence exists demonstrating that, by means of material, false statements or material omissions, Musa Stone and KMGK entered Chinese-origin QSP from Siam Stone and Badan, respectively, that was subject to the *AD/CVD Orders* and failed to pay the requisite duties. While Badan may have some QSP production capability in the Philippines, no reliable evidence exists to indicate whether KMGK's two entries of QSP from Badan were produced from Chinese-origin or Philippine-origin QSP. This unreliability is demonstrated by the submission of Badan's material, false statements. Thus, CBP determines that both of KMGK's entries of QSP into the United States from Badan during the POI are Chinese-origin based on Badan's affiliation with its Chinese suppliers of QSP and record evidence that Badan sourced [description] of its QSP from China.²¹³ This evidence is bolstered by the adverse inference that the QSP entered during the POI was Chinese-origin, but CBP reiterates that the adverse inference is not necessary to the determination that substantial evidence of evasion is present on the record.

Determination as to Evasion

In conclusion, the previously discussed facts on the record establish that Chinese-origin QSP was transshipped through Thailand and the Philippines and imported into the United States. Furthermore, evidence on the record indicates that Musa Stone and KMGK subsequently entered the Chinese-origin QSP into the United States as type 01 entries that evaded the payment of AD/CVD duties on QSP from China.²¹⁴ CBP determines that substantial evidence exists demonstrating that, by means of material false statements or material omissions, Musa Stone and

²¹⁰ See 19 U.S.C. § 1517(c)(3); see also 19 C.F.R. § 165.6.

²¹¹ See June Memorandum 2 at Attachment 3; see also Musa Stone RFI at Exhibit 4, pages 50-52; see also Musa Stone Allegation at 7 and Exhibit 3.

²¹² See June Memorandum 2 at Attachment 2.

²¹³ *Id.*

²¹⁴ Entry type "01" is the code that CBP requires importers use to designate a standard consumption entry that is not subject to AD/CVD duties. See <https://www.cbp.gov/trade/automated/ace-transaction-details>.

KMGK entered Chinese-origin QSP that was transshipped through Thailand or the Philippines into the United States. The QSP that Musa Stone entered from Siam Stone during the POI and that KMGK entered from Badan during the POI is subject to the AD/CVD rates on QSP from China.²¹⁵ Because Musa Stone and KMGK did not declare that the merchandise was subject to the *AD/CVD Orders* on entry, the requisite cash deposit was not collected on the merchandise. Conversely, for importer Kings, CBP did not find substantial evidence during the POI that Kings entered covered merchandise through evasion.

Actions Taken Pursuant to the Affirmative Determination as to Evasion

In light of CBP's determination that substantial evidence demonstrates that Musa Stone and KMGK²¹⁶ entered covered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP will suspend or continue to suspend the entries subject to this investigation, until instructed to liquidate. For those entries previously extended in accordance with Interim Measures, CBP will rate adjust and change those entries to type 03 and continue suspension until instructed to liquidate these entries.²¹⁷ Finally, CBP will continue to evaluate Musa Stone's and KMGK's continuous bonds in accordance with CBP's policies and will require single transaction bonds as appropriate. None of the above actions preclude CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,



Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

²¹⁵ Musa Stone's QSP entry from Siam Stone and KMGK's QSP entries from Badan are subject to the "China-Wide Entity" rate of 326.15 percent for AD case A-570-084 and the "All-Others" rate of 45.32 percent for CVD case C-570-085. These two rates equal a combined rate of 371.47 percent. *See AD/CVD Orders*.

²¹⁶ With regard to Kings, no interim measures were implemented; therefore, no additional actions need be taken as of this notice.

²¹⁷ Entry type "03" is the code that CBP requires importers use to designate a consumption – Antidumping/Countervailing Duty entry as subject to AD and/or CVD duties. The instructions for CBP Form 7501 (Entry Summary) state that code 03 shall be used for entries subject to AD/CVD duties. *See* <https://www.cbp.gov/trade/automated/ace-transaction-details>.